

**LIMITED SOURCES JUSTIFICATION (LSJ)
JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION (JOFOC)**

Version Control Date: August 6, 2024

Date: February 24, 2025

MEMORANDUM TO: Louis Gilden, Contracting Officer

FROM: Lorna P. Kipfer, Contracting Officer Representative, Office of Nuclear Reactor Regulation

SUBJECT: ☐ **LIMITED SOURCES JUSTIFICATION (LSJ)**
☒ **JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION (JOFOC)**

REFERENCE: Conference Facility/Meeting Space for NRC's Regulatory Information Conference (RIC)

"Source Selection Information – see FAR 2.101 and 3.104"

1. Nature and/or description of the action being approved.

The Nuclear Regulatory Commission (NRC) Office of the Nuclear Reactor Regulation and Office of Nuclear Regulatory Research require a sole source, open market, stand-alone contract for RIC Facility/Meeting Space.

2. Description of the supplies or services required to meet the agency's needs.

Acquisition purpose and objectives. The objective of this contract is to procure conference space that includes the use of audio-visual equipment. The anticipated number of attendees is 2600 – 3000 in-person attendees. The conference dates for this contract are:

- March 10-12, 2026;
- March 9-11, 2027;
- March 14-16, 2028;
- March 13-15, 2029; and
- March 12-14, 2030.

a. Project background.

The U.S. Nuclear Regulatory Commission (NRC), Office of Nuclear Reactor Regulation (NRR) and Office of Nuclear Regulatory Research (RES) host an annual three-day RIC. The objective of the RIC is to provide a communication forum for the NRC and industry with regards to current and future nuclear initiatives and reactor issues.

The RIC continues to draw over 3,000 participants annually on a hybrid basis (both in-person and virtual attendance). With continued interest in energy sources, and renewed focus on safety and security of regulation in the nuclear arena, participation at the RIC is expected to be well attended. The majority of RIC attendees are associated with the nuclear power industry, including manufacturers, architect/engineering firms, senior NRC officials, corporation presidents, chief executive officers and government executives, as well as head regulators and representatives of foreign countries and the general public. The RIC's success is contingent on reserving space for, at a minimum, an anticipated number of in-person attendees is 2600 – 3000 attendees (comprising of NRC employees, invitees, and other interested parties).

b. Name and address of the proposed contractor(s).

Bethesda North Marriott Hotel and Conference Center
5701 Marinelli Rd.
Rockville, MD 20852

Project title.

Meeting Space/Conference Facility for NRC's Regulatory Information Conference

Project description.

The contractor shall provide conference meeting space, audio visual support. and set aside hotel rooms for RIC attendees who will individually reserve and pay for the rooms for the NRC's RIC.

a. Acquisition Information.

• **Requirement type.**

- ☐ Research & development (R&D)
- ☐ R&D support services
- ☐ Support services (non-R&D)
- ☐ Supplies/equipment
- ☐ Information Technology (IT) or Electronic and Information Technology (EIT)
- ☐ Construction
- ☐ Architect-engineer (A-E) services
- ☐ Design-build
- ☒ Other (specify): meeting facility/conference space and related

services

- **Type of action.**
 - ☐ New requirement
 - ☐ Follow-on
 - ☒ Other (specify): New contract for existing requirement under expiring contract 31310022C0026.
- **Proposed contract/order type.**
 - ☒ Firm-fixed-price
 - ☐ Other fixed-price (specify, e.g., fixed-price award-fee, fixed-price incentive-fee): _____
 - ☐ Cost-plus-fixed-fee
 - ☐ Other cost reimbursement (specify, e.g., cost-plus-award-fee, cost-plus-incentive-fee): _____
 - ☐ Time and materials
 - ☐ Labor Hours
 - ☐ Indefinite delivery (specify whether indefinite quantity, definite quantity, or requirements): _____
- **Statement of Work Type**
 - ☒ Completion
 - ☐ Level of Effort
 - ☐ Performance Based
- **Requisition number.**

REQ # NRR-25-0034
Current contract #: 31310022C0026
New contract #: 31310025C0002
- **Total estimated dollar value and performance/delivery period.**

The total estimated dollar value of the acquisition is **\$1,963,796.27**.
Period of Performance as follows.

 - Base Year: September 1, 2025 – August 31, 2026
 - Option Period 1: September 1, 2026 – August 31, 2027
 - Option Period 2: September 1, 2027 – August 31, 2028
 - Option Period 3: September 1, 2028 – August 31, 2029
 - Option Period 4: September 1, 2029 – August 31, 2030

3. **Identification of the justification rationale.**

- ☐ **This acquisition is conducted under Federal Acquisition Regulation (FAR) 8.405-6.**

- ☐ Urgent and compelling need exists
- ☐ Only one source is capable of providing the supplies or services (i.e., peculiar item, brand name item)
- ☐ Logical follow-on

☐ **This acquisition is conducted under FAR 13.106-1(b).**

☒ **This acquisition is conducted under FAR 6.302- 1. The statutory authority is [41 U.S.C. § 3304\(a\)\(1\)](#)**

- ☒ 6.302-1 Only one responsible source and no other supplies or services will satisfy agency requirements
- ☐ 6.302-2 Unusual and compelling urgency
- ☐ 6.302-3 Industrial mobilization; engineering, developmental, or research capability; or expert services
- ☐ 6.302-4 International agreement
- ☐ 6.302-5 Authorized or required by statute
- ☐ 6.302-6 National security
- ☐ 6.302-7 Public interest

☐ **This acquisition is conducted using Simplified Procedures for Certain Commercial Items pursuant to FAR 13.500.**

☐ **This acquisition is conducted using Simplified Procedures for Certain Commercial Items pursuant to FAR 13.500(c).**

4. Description of the proposed contractor(s) unique qualifications to provide the required supply or service.

The conference facility needs to be within close proximity to NRC headquarters (HQ) to allow flexibility for members of the Commission, Executive Director for Operations, and senior leadership to return to NRC HQ in the event that there is a time-sensitive, or safety and security-related matter requiring their immediate attention. Additionally, events are held in close conjunction with the RIC at NRC Headquarters. Such events are the Chairman's reception as well as touring the NRC facility. Close proximity is defined as being within a 15-minute commute to NRC headquarters (HQ) and shall be no more than a .5 mile walk from a Metrorail Station on the red line between the Shady Grove Metro Station and the Friendship Heights Metro Station.

There is a significant benefit to the NRC in avoiding lost productivity and salary costs of NRC senior leaders and staff that would be incurred by them traveling to other conference facilities located further away than the Bethesda Marriott. This benefit to the agency is uniquely provided by the Marriott's immediate proximity to the NRC HQ buildings. If NRC senior leaders and staff were to travel to downtown DC to attend a couple of RIC sessions and come back, the 70-minute round trip would result in lost

productivity/salary costs, as well as Metro transportation costs. The close proximity of Marriott means senior leaders and staff can walk across the street and back a couple of times for a morning session and for an afternoon session, and return to HQ to do productive work in between, rather than have to stay at the RIC during the interim period for sessions that may not be of value to different individuals depending on their job functions and interests. There are no other facilities than the Bethesda Marriott that can provide this benefit to the NRC.

More distant transportation (i.e., metro smart trip cards) for NRC employees to attend the RIC at a farther location would add considerable costs to the NRC. As a point of comparison, below is a breakdown of cost savings to the agency for each employee attending the RIC at a conference facility within Rockville, MD, vs. attending the RIC at a conference facility located within Washington D.C. area:

- ~70 minutes round-trip (via metro) per day x 3 days = 3.5 hours total travel time x ~1,000 NRC employees traveling from NRC HQ to conference facility.
- ~\$14.00 round-trip (via metro) per day x ~1,000 NRC employees = ~\$14,000 per day, x 3 days = \$42,000 total metro fare costs.

The Bethesda North Marriott Hotel and Conference Center (Marriott) is the only hotel / conference facility that meets the following three NRC requirements for a facility/meeting space:

- The Marriott is in close proximity (approximately 5-miles or a 15-minute commute), to NRC HQ; it is located approximately 0.2 miles from NRC HQ.
- The Marriott has the capacity to accommodate approximately 3,000 in-person attendees' theatre-style for the RIC.
- The Marriott is available over the requested conference dates.

5. Description of the efforts made to ensure that offers are solicited from as many potential sources as practicable. Indicate whether a SAM.GOV notice was or will be publicized as required by FAR Subpart 5.2 and, if not, which exception under FAR 5.202 applies.

Notice of the NRC's intent to enter into a sole-source contract with North Bethesda Marriott Hotel and Conference Center was posted to SAM.GOV on August 8, 2024. No response was received by the closing date of August 23, 2024.

6. Description of the efforts made by the Contracting Officer (CO) to determine that the cost/price of the contract/order is fair and reasonable consistent with FAR 8.404(d) or 15.406-2.

The Contracting Officer will compare the proposed price to historical data as well review the offeror's published commercial pricing to ensure that the proposed price is fair and reasonable.

7. Description of the market research conducted (see FAR Part 10) and the results, or a statement of the reasons market research was not conducted.

The NRC did an internet search and identified 21 potential vendors in close proximity to the NRC. Of the 21, 20 could not meet our space requirements, therefore, were not contacted for further consideration. The one remaining source, Marriott North Bethesda Conference Center can meet our space requirements.

8. Other factors supporting the justification, if any.

Not applicable.

9. List sources, if any, that have expressed an interest in the acquisition.

None.

10. If applicable, describe the actions the agency may take to remove or overcome any barriers that led to the restricted consideration before any subsequent acquisition for the supplies or services is made.

The NRC will continue to do market research in the Rockville, Maryland area to locate meeting room/conference space within close proximity to the NRC that can provide the services needed for the RIC.

11. Certifications

This is to certify that the justification for the proposed acquisition has been reviewed and that, to the best of my knowledge and belief, the information and/or data provided to support the rationale and recommendation for approval is accurate and complete.

Contracting Officer Representative

Lorna P. Kipfer

February 24, 2025

Lorna P. Kipfer, Management and Program Analyst

By signing below, the CO certifies that the justification is accurate and complete to the best of his or her knowledge and belief.

Contracting Officer

LOUIS GILDEN Digitally signed by LOUIS GILDEN
Date: 2025.02.24 16:50:33 -05'00'

Louis Gilden, Contracting Officer – AMD/ADM

CONCUR:

Branch Chief

DOMONIQUE MALONE Digitally signed by DOMONIQUE
MALONE
Date: 2025.02.26 08:38:25 -05'00'

Dominique Malone
Branch Chief, Operations Branch A – AMD/ADM

Advocate for Competition

NICOLE STEVENSON Digitally signed by NICOLE STEVENSON
Date: 2025.02.26 09:16:05 -05'00'

Nicole Stevenson
Advocate for Competition/Deputy Director – AMD/ADM